

EXHIBIT 6: EVIDENCE OF OBSTRUCTION AND CONSTRUCTIVE EXCLUSION

Complainant: [REDACTED]

Respondent: Prior Lake-Savage Area Schools (ISD 719)

Purpose: This exhibit compiles the documentary evidence demonstrating the District's active suppression of grievance reporting, maintenance of false records, and reliance on legal counsel to execute a constructive exclusion.

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Document / Communication Date	Description & Relevance to Claims	Primary Bates Support	Backup / Corroboration
Transportation/Enrollment Records vs. Claim of Withdrawal Mid-Dec 2024 & May 6, 2025	Special Transportation Request Form and subsequent correction request. Proves ongoing enrollment and District awareness of student's status, directly contradicting the District's claim of unprompted "withdrawal" in the January report.	PLSAS-EX2-001 - PLSAS-EX2-020	PLSAS-EX2-140 - PLSAS-EX2-161

Refusal of Electronic Submission January 4, 2025	Email from [REDACTED] stating he has "no suggestions" for electronic submission and requesting a "hard copy." Establishes an active, deliberate barrier to reporting.	PLSAS-001 - PLSAS-010	PLSAS-EX4-001 - PLSAS-EX4-006
Discovery of the Suppressed Confidential Reporting Form February 28, 2025	Email to Emily Herman confronting the District regarding the active suppression/removal of the online reporting form and demanding an explanation for false claims that no electronic method existed.	PLSAS-EX6-004 - PLSAS-EX6-008	PLSAS-EX6-001 - PLSAS-EX6-015
Admission of Legal Consultation During Investigation March 13, 2025	Title IX Sexual Harassment Complaint – Summary Report. Explicitly lists a "Consult with Legal regarding Title IX" during the investigation, establishing counsel's involvement prior to subsequent obstructive acts.	PLSAS-EX3-[specific page containing "Consult with Legal regarding Title IX"]	PLSAS-EX3-001 - PLSAS-EX3-010

Formal Articulation of Constructive Exclusion May 6, 2025	Email explicitly tying the District's failure to apply Weapons Policy 501 to a 2nd-degree assault with their refusal to provide a safety plan, arguing this constituted an effective block on education.	PLSAS-EX2-001 - PLSAS-EX2-020	PLSAS-EX3-[pr edicate finding / dismissal pages]
Refusal to Correct Falsified Records Without Evidence May 27, 2025	Official response from Emily Herman denying the correction request, claiming data is accurate despite having previously admitted no underlying records exist to support the District's determinations.	PLSAS-EX2-[May 27 denial pages]	PLSAS-001 - PLSAS-038
Admission of Retaliatory Withholding — Chief Attorney June 12, 2025	Email from Emily Herman containing the explicit admission that the chief attorney invoked civil investigative data exceptions due to threats of enforcement, and claiming attorneys are exempt "school officials."	PLSAS-EX4-013 - PLSAS-EX4-015	None needed

EXHIBIT 6: TIMELINE OF OBSTRUCTION,

SPOLIATION, AND CONSTRUCTIVE EXCLUSION

This timeline details the sequence of events demonstrating the District's active suppression of grievance reporting, maintenance of false records, and reliance on legal counsel to execute a constructive exclusion.

2024

- **October 29, 2024:** Minor student struck in the head five times with a chair during class, suffering a severe concussion.
- **October 31, 2024:** Internal Behavior Detail Report inaccurately minimizes the incident to "twice" and excludes the application of Weapons Policy 501.
- **November 1 & 4, 2024:** Initial reports of the assault sent by the family are blocked by District email filters.
- **Mid-December 2024:** The District processes and approves a "Special Transportation Request Form," actively arranging transportation for the student, proving ongoing enrollment and District awareness of the student's status.

2025

- **January 4, 2025:** Complainant submits a Formal Complaint. The District (via [REDACTED]) formally refuses to provide an electronic means to submit the Title IX interview/complaint, stating, *"I don't have any suggestions about being able to send this message to me electronically... you can certainly send me a hard copy."*
- **January 4, 2025 (Simultaneous):** The District issues a Summary Report falsely claiming the student had "withdrawn" without any safety concerns being reported, directly contradicting their active provision of special transportation.
- **February 16, 2025:** Complainant discovers the District possessed a functional "Hidden Oaks Confidential Reporting Form" online. Complainant submits a FERPA request demanding to know why the District hid this form and falsely claimed no electronic submission method existed.
- **February 28, 2025:** Follow-up demands sent to Title IX Coordinator Emily Herman regarding the removal and suppression of the online Confidential Reporting Form.
- **March 13, 2025:** The District issues a heavily redacted Title IX Summary Report. Under "Investigation Process," the report explicitly admits to a *"Consult with Legal regarding Title IX."* No legal disclosure logs or statutory exemptions are provided for the underlying notes.
- **May 6, 2025:** Complainant files a formal Request for Education Record Correction, challenging the false "withdrawal" timeline, pointing out the active transportation records, and arguing that the failure to apply Weapons Policy 501 combined with a refusal to provide a safety plan constituted a "constructive exclusion."
- **May 27, 2025:** Executive Director Emily Herman formally denies the correction request, stating without evidence that the District *"has determined the data to be correct, complete, not inaccurate, and not misleading."* Complainant simultaneously requests the legal disclosure logs regarding the attorney consultation admitted in the March 13 report.
- **June 12, 2025:** Emily Herman admits that the "chief attorney" determined records should be withheld as "civil investigative data" in direct retaliation for the Complainant's threats to

seek administrative enforcement. She further claims the attorney is a "school official" exempt from disclosure log requirements.

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-EX2	4	Redacted to protect personal privacy.
PLSAS-001	2	Redacted to protect personal privacy.
PLSAS-001	1	Redacted to protect personal privacy.
PLSAS-0004	17	Redacted to protect personal privacy.
PLSAS-0004	16	Redacted to protect personal privacy.